

-lp|
TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR

Judge Jonathan Fish

June 22, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Annevelink vs. Watson 2025-01496571	Motion to Appoint Receiver The court will speak with parties.
2	Biocorr, Inc. vs. VDM Biochemicals, Inc. 2021-01195606	Motion for Limited Discovery Motion for Leave to File Amended Cross-Complaint Court will hear argument.
3	Chau vs. Ho 2025-01492515	Demurrer to Amended Complaint The Demurrer by Defendants International Buddhist Cultural Heritage Foundation (“Foundation”) and Tang Ho aka Thich Vien Ly (“Defendant Ly”), to the First Amended Complaint by Plaintiff Huong Chau (“Plaintiff”), is sustained in part and overruled in part. Foundation’s demurrers to the ninth, tenth, and twelfth causes of action are sustained with leave to amend. The remainder of the demurrers are overruled. <u>9th, 10th, and 12th COA</u> The demurrers by Foundation are sustained, because Plaintiff has not alleged facts showing that Foundation is an “employer” as statutorily defined by Government Code sections 12926 or 12940. The allegations in the FAC reflect that Foundation is a religious association (or entity) that is exempt from the FEHA claims. (See FAC at ¶¶ 5-6., subd. (j)(4)(B).) However, Defendants fail to cite any authority that this defense would apply to Plaintiff’s non-FEHA claims. As such, the Court sustains the Foundation’s demurrers to the 9th cause of action for harassment based on FEHA, 10th cause of action for retaliation in violation of FEHA, and 12th cause of action for discrimination/harassment/retaliation based on FEHA, with leave to amend. Defendant Ly’s demurrer to the 9th COA for harassment is overruled. Defendants contend Defendant Ly cannot be personally liable because he is not alleged to be Plaintiff’s “employer” (as opposed to a “supervisor”) for the purpose of a discrimination claim under FEHA.

Defendants concede that individual supervisors can be sued for harassment under FEHA, but argue that Plaintiff's claims against Defendant Ly "really consists of acts other than harassment," like failing to pay her minimum wage, or providing rest breaks and sick days. (Dem. at p. 5.) This argument is not persuasive because Plaintiff expressly alleges in the FAC that Defendant Ly also "subject[ed] her to gender harassment." (See FAC at ¶ 75.) Even if Defendant Ly cannot be personally liable for the wage claims, a demurrer "does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1681-1682.)

11th, 13th, 16th Through 20th COA

Defendants contend that Plaintiff's claims are also barred under the "ministerial exception," a "doctrine rooted in the First Amendment's guarantees of religious freedom." (Dem. at p. 6.)

The "ministerial exception" is based on the First Amendment's prohibition against making any laws "respecting an establishment of religion, or prohibiting the exercise thereof." (*Lorenzo v. San Francisco Zen Center* (2025) 116 Cal.App.5th 258, 269 [citation omitted]; see also *Hope Internat. University v. Superior Court* (2004) 119 Cal.App.4th 719, 734 [ministerial exception is "a 'nonstatutory, constitutionally compelled' exception to federal civil rights legislation"].) It "operates to preclude application of employment discrimination laws to certain claims arising out of the employment relationship between a religious institution and its ministers." (*Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1337.)

"The basic contours of the ministerial exception as now developed in the common law are fairly stable." The test is whether "the employee's duties 'go to the heart of the church's function in the manner of a minister or a seminary teacher.'" (*Hope Internat. University*, supra, 119 Cal.App.4th at p. 734.) "In order to be considered 'clergy,' an employee's primary duties must " 'consist of teaching, spreading the faith, church governance, supervision of a religious order, or supervision or participation in a religious ritual and worship....' " If the employee is determined to be "clergy," then "[t]he rule is about as absolute as a rule of law can be: The First Amendment guarantees to a religious institution the right to decide matters affecting its ministers' employment, free from the scrutiny and second-guessing of the civil courts." (*Ibid.* [internal citations omitted].)

Here, the Court rejects the application of the ministerial exception to Plaintiff's wage and hour claims (i.e., her 16th, 17th, 18th, and 19th causes of action). (See *Lorenzo*, supra, 116 Cal.App.5th at p. 272

		[holding that ministerial exception does not bar plaintiff’s wage-and-hour claims].) “Although religious organizations enjoy autonomy in “matters of ‘faith and doctrine’ ” and “ ‘ “church government,” ’ ” they do not “enjoy a general immunity from secular laws.” (Ibid., quoting <i>Our Lady of Guadalupe School v. Morrissey-Berru</i> (2020) 591 U.S. 732, 746.) Notably, California courts have expressly acknowledged that, “a series of Ninth Circuit decisions have applied the ministerial exception to bar wage-and-hour claims by ministers,” yet our courts have declined to follow these (non-binding) federal decisions. (See, e.g., <i>Lorenzo</i>, supra, 116 Cal.App.5th at p. 276 [noting that “the Ninth Circuit has provided little or no analysis to support its overly broad interpretation of the ministerial exception”].) Additionally, the Court overrules the demurrers to the wage and hour claims <i>and</i> the remaining claims for retaliation, wrongful termination, and unfair business practices, because it cannot be determined, as a matter of law, that Plaintiff was a “minister” or “clergy” that would fall under the exception. (See <i>Our Lady of Guadalupe School v. Morrissey-Berru</i> (2020) 591 U.S. 732, 746.) Defendants point to the allegations that Plaintiff is a “Buddhist nun,” had been for “approximately twenty years,” and “was in line for leading her own Buddhist temple” in Vietnam before coming to the Foundation. (Dem. at p. 9.) However, Plaintiff does not allege facts in the FAC showing that she was employed by Defendants to perform any functions that the ministerial exception was intended to protect. The job duties she describes in her FAC are secular in nature (e.g., cooking meals, processing donations, cleaning the office, providing janitorial and gardening services). (See FAC at ¶ 16.) At this juncture, the Court cannot determine whether the ministerial exception applies to any of Plaintiff’s claims. (See <i>Atkins</i>, supra, 90 Cal.App.5th at 1345 [reversing judgment and vacating order granting summary judgment].) Plaintiff shall have 30 days to file and serve her amended pleading. Defendants shall give notice of the ruling. Case Management Conference Continued to 8/31/26 at 9:00 a.m.
4	Dobbs vs. SC Wings Buena Park, LLC 2025-01522372	Motion to Compel Arbitration Defendant SC Wings Buena Park, LLC’s (“Defendant”) Petition for Order Staying Action and Requiring Plaintiff Charles Shon Dobbs (“Plaintiff”) to Arbitrate the Controversy is granted.

Defendant petitions for an order compelling arbitration and staying the action pending resolution of the arbitration. (ROA 14.) Defendant contends Plaintiff signed a written “Arbitration of Disputes Agreement” when he completed his “onboarding” documents.

The FAA and CAA

The FAA applies to any dispute concerning an arbitration provision in a contract “evidencing a transaction involving commerce.” (9 U.S.C. § 2.) This phrase is construed broadly and may apply to disputes between residents of the same state and in-state transactions that “affect” interstate commerce. (*Khalatian v. Prime Time Shuttle, Inc.* (2015) 237 Cal.App.4th 651.) “The ‘principal purpose’ of the FAA is to ‘ensur[e] that private arbitration agreements are enforced according to their terms.’” (*Lacayo v. Catalina Restaurant Group Inc.* (2019) 38 Cal.App.5th 244, 257, citing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 344, 131 S.Ct. 1740.)

“California law, like federal law, favors enforcement of valid arbitration agreements.” (*Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 721, citation omitted.) Arbitration provisions are to be interpreted broadly and “should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute.” (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1321, citations omitted.)

“Whether an agreement to arbitrate exists is a threshold issue of contract formation and state contract law.” (*Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 843-844.) The party seeking to compel arbitration has the initial burden of “proving the existence of a valid agreement to arbitrate.” If that burden is satisfied, “the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition.” (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal. App. 4th 50, 59, citations omitted.)

Existence of an Agreement to Arbitrate

A petition to compel arbitration must “alleg[e] the existence of a written agreement to arbitrate a controversy.” (Code Civ. Proc., § 1281.2.) California Rules of Court, rule 3.1330, which governs arbitration motions, states: “in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration” must be stated in the petition, either “verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. R. Ct. Rule 3.1330.)

A writing must be authenticated “before it may be received in evidence.” (Evid. Code, § 1401.) However, it is well-settled that, in the context of petitions to compel arbitration, “ ‘it is not necessary to follow the normal procedures of document authentication.’ ” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058, quoting *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) Rather, the petitioning party “may meet [its] *initial* burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature,” which will be deemed “in compliance with the requirements of section 1281.2 and California Rules of Court, rule 3.1330.” (*Id.* at p. 1060 [emphasis in original].)

Here, Defendant has met its initial burden by attaching the arbitration agreement to the supporting declaration from its in-house counsel, Anthony Klish. (See ROA 15 [Klish Decl. at ¶ 8, Exh. A].) Mr. Klish explains that the arbitration agreement is one of the “onboarding forms” that is given to employees at orientation, and that the forms are provided through “DocuSign” and “the hiring program commonly known as ‘Hire Me.’” (Klish Decl. at ¶ 4.) Mr. Klish further explains that the recipient must provide a “base signature,” which is applied to the document where the employee wishes to place his or her signature. (Klish Decl. at ¶¶ 4-6.) Mr. Klish attests that he is the “only person in the organization that had control of the documents that also knew of the Plaintiff’s purported claims”; and, that he “did not retroactively forge Plaintiff’s signature on the Onboarding Forms...” (Klish Decl. at ¶ 9.)

The arbitration agreement states, in relevant part, that, “any and all claims, disputes or controversies between employees and [Defendant] shall be resolved by binding arbitration pursuant to the provisions of this policy, except as otherwise specifically prohibited by law.” This includes, but is not limited to, “those arising out of or related to an employee’s hiring, employment, the terms and conditions of that employment, and the termination of employment...” “Any such Claim shall be settled by arbitration, in Los Angeles, California, to be administered by Action Dispute Resolution Services (‘ADR Services’), in accordance with and pursuant to its Arbitration Rules (‘Rules’) then in effect...” Defendant “shall pay all arbitration forum fees, with the exception of that portion of the arbitration filing fee which is equivalent to the amount of the filing fee that would be required if Claims were filed by the employee as a lawsuit in a court of law.”

In opposing the motion, Plaintiff has not challenged the authenticity of the arbitration agreement or that it would apply to all his claims.

Rather, Plaintiff objects to Mr. Klish's testimony on the grounds that it lacks foundation, because Mr. Klish does not have personal knowledge of Plaintiff (i.e., that Mr. Klish did not witness Plaintiff's execution of the arbitration agreement). (See ROA 39.) Plaintiff's objections are overruled. As explained, above, the "normal procedures of document authentication" do not apply to arbitration petitions. Rather, Defendant's *initial* burden was to proffer a copy of the arbitration agreement that purportedly bears Plaintiff's signature. Thereafter, *if* Plaintiff challenges the authenticity of his signature, then Defendant has "the burden of proving by a preponderance of the evidence that the electronic signature was authentic." (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; see also *Espejo*, supra, 246 Cal.App.4th at 1059 [noting that, although *Ruiz* "reached the opposite conclusion regarding the sufficiency of the defendant's showing, it applied the same principles" regarding the petitioner's burden as stated in *Condee*].)

Plaintiff's reliance on *Ruiz* is misplaced, because he has not challenged the authenticity of his electronic signature on the arbitration agreement. Notably, Plaintiff's only argument is: "The Declaration of Mr. Klish fails to establish any foundation to authenticate the purported arbitration agreement." (Opp'n at p. 3.) Plaintiff does not deny that he signed the arbitration agreement, much less proffer a competing declaration that the signature is not authentic. Accordingly, under both *Condee* and *Ruiz*, Defendant has already met its initial burden and is not required to take further steps to authenticate the agreement.

Step 2: Defense To Enforcement

The burden shifts to Defendant to show there is a defense to enforcement of the arbitration agreement. Plaintiff contends, "Defendant's own statements contradict its own desire to arbitrate this matter," because Defendant has purportedly made "contradictory statements" by filing out case managements that request a jury trial and discovery. (Opp'n at p. 4.) This argument is not persuasive.

"To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it." (*Ibid.*)

		Here, there is no evidence that Defendant waived its right to arbitration. Defendant not only reserved the right to compel arbitration, but it already exercised that right. Plaintiff fails to cite any authority showing that the submission of case management statement (which a party is required to file under the Rules of Court) results in “waiver” merely because the participant has selected “a jury trial” over a “nonjury trial” under section 5. Section 5 presumes that the court will hold a case management conference and set the matter for a jury or non-jury (bench) trial. However, when the arbitration petition is granted, this case is stayed and the court does <i>not</i> proceed with the case management conference. Plaintiff has not raised any other arguments regarding the enforceability of the agreement. The Court finds Plaintiff has not met his burden of showing there is a defense to enforcement. The motion to compel arbitration is granted. Plaintiff is ordered to arbitrate all of his claims. The action is stayed pending final resolution of the arbitration. (Code Civ. Proc. § 1281.4.) The Case Management Conference is vacated. The Court sets an arbitration status conference for 12-4-26 at 9:00 a.m. in Department C11. Defendant shall give notice of the ruling. Case Management Conference – off calendar
5	Dyer Industrial, LLC vs. Impact Advertising, Inc. 2022-01291920	Motion for Entry of Judgment Withdrawn
6	Freeman vs. Espinoza 2025-01511842	Motion for Partition of Real Property by Sale and Appoint a Partition Referee Plaintiff Kerry Freeman moves for an interlocutory judgment ordering partition of the property located at 22145 Newbridge Drive, #12, Lake Forest, California, 92630 by sale, and the appointment of a referee. As an initial matter, the Court notes that there are a number of procedural defects with respect to Defendant’s opposition.

First, the opposition was due to be filed and served on 6/8/26 (9 court days before hearing), but was not filed and served until 6/11/26. (Code Civ. Proc., § 1005(b).) Second, opposition briefs are limited to 15 pages, and Defendant's brief was 25 pages. (CRC, Rule 3.1113(d).) Third, there was no table of contents or table of authorities which are required for any brief over 10 pages. (CRC, Rule 3.1113(f).)

Pursuant to CRC, Rule 3.1300(d) and (g), the court exercises its discretion and does not consider Defendant's opposition for the first two reasons stated above.

The motion is nonetheless denied not for these reasons, but because Plaintiff fails to establish entitlement to the relief requested.

Partition is an equitable action that is governed by statute. (Code Civ. Proc. § 872.010 et seq.) Property may be partitioned by physical division, sale of the property and division of the proceeds, or court approved and supervised partition by appraisal. (Code Civ. Proc. §§ 873.210-290, 873.510-850, 873.910-980.) Generally, cotenants have an absolute right to partition the property, so long as they have not waived their right. (Williams v. Williams (1967) 255 Cal. App. 2d 648, 651.) The presumption is toward division, and against sale, unless it is shown that division would not be feasible and sale more equitable and fair. (Code Civ. Proc. § 872.820(b); Butte Creek Island Ranch v. Crim (1982) 136 Cal. App. 3d 360, 365.)

The interests of the parties, plaintiffs as well as defendants, may be put in issue, tried, and determined in a partition action. (Code Civ. Proc. § 872.610.) To the extent necessary to grant relief, the court "shall upon adequate proof ascertain the state of the title to the property." (Code Civ. Proc. § 872.620.) Similarly, the court is to determine the status and priority of liens. (Code Civ. Proc. § 872.630.)

"At the trial, the court shall determine whether the plaintiff has the right to partition." (Code Civ. Proc. § 872.710(a). [emphasis added]) If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property. (Code Civ. Proc. § 872.720(a).)

Thereafter, the court shall order that the property be divided in accordance with the parties' interests as determined in the interlocutory judgment. (Code Civ. Proc. § 872.810.) If the court orders sale, the court shall appoint a referee to divide and sell the property. (Code Civ. Proc. § §872.010, 873.020.)

		This statutory scheme envisions an interlocutory judgment of partition, and that must come as the result of a trial -- or summary judgment under Code Civ. Proc. § 437c. (See LEG Investments v. Boxler (2010) 183 Cal. App. 4th 484 (reversing denial of, and ordering trial court to grant, plaintiff's motion for summary adjudication on partition cause of action).) Although Plaintiff seeks partition of the property at issue by sale through this motion, a partition order can only be made after a trial or dispositive motion determining the parties' interests and rights. Plaintiff does not provide any authority showing that the relief requested may be granted via a motion at this juncture. Accordingly, the motion is denied. The clerk will give notice. Case Management Conference Off calendar. Court Trial set on 2-26-27 at 9:00 a.m.
7	Garcia vs. City of Santa Ana 2025-01493313	Demurrer to Amended Complaint / Motion to Strike Portions Of Complaint The demurrer of defendants Tatiana Monroy, Brenda Monroy, Jennifer H. Lopez, and Lawrence G. Lyonss to the first amended complaint ("FAC") of plaintiff Luis Alexander Deras Garcia is overruled in part and sustained in part with 15 days leave to amend, as stated below. Defendants' motion to strike portions of Plaintiff's FAC is denied in part and granted in part with 15 days leave to amend, as stated below. Facts Alleged in FAC In his FAC, Plaintiff alleges that he arrived an hour early for his appointment with Defendant Lyonss, Phd (also, "Dr. Lyonss"). Defendants Tatiana Monroy, Brenda Monroy, and Lopez were in the office, whom he alleges were employed by Dr. Lyonss and acting in the course and scope of that employment throughout, when he checked in. [FAC, ¶¶ 5-8, 15-19.] When Tatiana told him he was early, he explained he had had to travel quite a distance so made efforts to be sure not to be late. At that point, she verbally attacked him, asking why he could not speak English. When he questioned whether she was discriminating against him,

Tatiana got up from her chair, approached him, and then threw a cup at him and shouted at him to leave. [FAC, ¶¶ 20-22.]

When Plaintiff explained he had driven three hours to see Dr. Lyons due to a work situation, she continued to shout and began pushing and hitting him – and grabbed for his phone because he was recording. As she continued, Plaintiff decided to retreat to his car, where he called the police. [*Id.*, 23-25.]

When the police arrived, Plaintiff told them what happened and showed him the video. The police then spoke with Tatiana, Brenda and Lopez (without Plaintiff there), who told the police that Plaintiff was the aggressor and that he had assaulted Tatiana such that they feared for her life. Plaintiff was then arrested and his car towed. The charges were ultimately dismissed but only after he had to engage counsel and incur other costs. Some of his personal property was never returned. [FAC, ¶¶ 26-37.]

Demurrer

Legal Standard on Demurrer

A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. Limited to the “four corners” as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *People v. Lim* (1941) 18 Cal. 2d 872, 883. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal. App. 4th 612, 616. Errors and confusion created by “the inept pleader” are

to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. *Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908. A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. *Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).

Discussion

Declaration Filed in Support of Defendants’ Demurrer

In support of their demurrer, Defendants have filed a declaration that purports to set out a different course of events than those alleged in Plaintiff’s FAC. This is improper on a pleading motion. The court therefore disregards the declaration.

Second Cause of Action for Assault and Battery

According to its heading, this cause of action is asserted against Tatiana and Defendant Lyons as her employer. The allegations within the cause of action, however, include Brenda and Lopez. [FAC, ¶¶ 44, 45, 48.]

The elements of an assault cause of action are: (1) defendant acted, intending to cause harmful or offensive contact; (2) plaintiff reasonably believed that he/she was about to be touched in a harmful or offensive manner or (1) defendant threatened to touch plaintiff in a harmful or offensive manner; (2) it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant’s conduct; (4) plaintiff was harmed; and (5) defendant’s conduct was a substantial factor in causing plaintiff’s harm. CACI 1301.

The elements of a battery case of action are: (1) defendant touched plaintiff or caused plaintiff to be touched with intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s situation would have been offended by the touching. CACI 1300.

Defendants demur on behalf of Brenda, Lopez, and Dr. Lyons on the ground no actions by them are alleged. They further demur on behalf of Dr. Lyons on the asserted ground that not sufficiently alleged respondeat superior – for this argument Defendants rely, at least in part, on facts outside the FAC. For this argument, Defendants rely in part on facts outside the FAC. Despite their purported demurrer for

uncertainty, Defendants make no such argument and do not explain what or why a specific portion of this portion of the SAC is uncertain.

Defendant Lyons is alleged to be the other Defendants' employer – most pertinently Tatiana's -- and they are alleged to have acted within the course and scope of that employment.

An employer may be vicariously liable under the doctrine of *respondeat superior* for torts committed by employees:

- (1) in the course and scope of employment, and
- (2) if there exists a reasonable relationship between the duties of employment and the conduct causing injury, or
- (3) the injury was reasonably foreseeable in light of the employer's business or employee's job responsibilities.

Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 298; *Baptist v. Robinson* (2006) 143 Cal. App. 4th 151, 161; *Bailey v. Filco, Inc.* (1996) 48 Cal.App.4th 1552, 1559–60.

“[T]he proper inquiry is not ‘whether the wrongful act itself was authorized but whether it was committed in the course of a series of acts of the agent which were authorized by the principal.’ ”

Mary M. v. City of Los Angeles (1991) 54 Cal.3d 202, 218–219.

Flores v. Autozone West, Inc. (2008) 161 Cal.App.4th 373, 380–382 is particularly instructive here. In that case, an employee whose job involved dealing with customers assaulted a customer after a verbal disagreement. The court of appeal reversed summary judgment in favor of the employer because there was triable issue of fact whether the employee was acting within course and scope of employment. *Flores v. AutoZone West, Inc.* (2008) 161 Cal. App. 4th 373, 381. *See also Heiner v. Kmart Corp.* (2000) 84 Cal. App. 4th 335, 339–340, 350 (store security guard's use of force against complaining customer was “‘engendered by’ and ‘arose from’” his employment. Under the *Lisa M.* standard, no other conclusion could reasonably be drawn.”).

Here, for pleading purposes, Plaintiff has alleged enough for *respondeat superior* liability. He has alleged that Tatiana Monroy was employed by Dr. Lyons and was acting within the course and scope of her employment. Moreover, the facts of the alleged incident are that their interaction began with her taking a role in Plaintiff's check-in for an appointment with her employer.

The demurrer to this cause of action as to Defendant Lyons is therefore overruled.

As to Brenda and Lopez, however, the demurrer is sustained.

Plaintiff has alleged *no* acts by Brenda or Lopez – only that each was present. This is not enough to hold them liable for assault or battery. Nor has Plaintiff sufficiently alleged conspiracy.

The elements of civil conspiracy are (1) the formation and operation of the conspiracy, (2) a wrongful act done in the furtherance of the conspiracy, and (3) the resulting damage to the plaintiff. *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510-511.

As to the formation element, two or more persons must agree on a common plan to commit a tortious act. *Kidron v. Movie Acquisition Corporation* (1995) 40 Cal.App.4th 1571, 1582. The coconspirators must have “actual knowledge that a tort is planned and concur in the tortious scheme with knowledge of its unlawful purpose.” *Ibid.*

Third Cause of Action for Violation of Civil Code section

52.1

According to its heading, this cause of action is asserted against Tatiana and the police officers who arrested Plaintiff. Again, though, the internal allegations include Defendants Brenda and Lopez.

The Bane Act, enacted in 1987, prohibits all interference or attempted interference with another’s rights under federal and California law by “threats, intimidation, or coercion.” Civ. Code, § 52.1(a). But “[s]peech alone” is not prohibited by the Bane Act unless the “speech itself threatens violence” and the person “against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against” that person or the person’s property and the individual “threatening violence had the apparent ability to carry out the threat.” The Bane Act “does not provide any substantive protections; instead it enables individuals to sue for violations” of constitutional or statutory rights set forth elsewhere when those violations have occurred by “threats, intimidation, or coercion.” Civ. Code, § 52.1(j); *Reynolds v. County of San Diego* (9th Cir. 1996) 84 F.3d 1162, 1170.

To state a Bane Act claim, a plaintiff must allege the defendant intentionally interfered with or attempted to interfere with Plaintiff’s civil rights by threats, intimidation, or coercion, and must prove:

1. That by threats, intimidation or coercion, defendant caused plaintiff to reasonably believe that if he

exercised his right, defendant would commit violence against him and that defendant had the apparent ability to carry out the threats;

or

That defendant acted violently against plaintiff to prevent him from exercising his right or to retaliate against plaintiff for having exercised his right;

2. That defendant intended to deprive plaintiff of his enjoyment of the interests protected by the right;

3. That plaintiff was harmed; and

4. That defendant's conduct was a substantial factor in causing plaintiff's harm.

CACI No. 3066.

Statutory causes of action must be pleaded with particularity. *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.

For this cause of action, Plaintiff broadly alleges that Defendants, including the officers who arrested him, violated his civil rights. [FAC, ¶ 50.] The court finds that this is insufficient.

Again, no actual conduct by Brenda Monroy or Jennifer Lopez is alleged.

The demurrer to this cause of action is sustained.

Fourth Cause of Action for Intentional Infliction of Emotional Distress

This cause of action is asserted against all Defendants.

Under California law, the elements of a claim for intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903. "Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Id.*)

As described above, Tatiana Monroy is alleged to have verbally abused Plaintiff, questioning whether he could speak English, because she was apparently upset about his accent. From there, she physically attacked him. This is sufficient to allege extreme and outrageous conduct. And for the reasons discussed above, allegations of her employment and that she acted within the course and scope are sufficient for respondeat superior liability as to defendant Lyons.

But, again, there are no allegations of actual conduct by Brenda Monroy or Jennifer Lopez.

The demurrer to this cause of action is overruled as to Lyons (and Tatiana if that is part of the demurrer); it is sustained as to Brenda Monroy and Jennifer Lopez.

Motion to Strike **Legal Standard**

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. *Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.

Motions to strike are disfavored. Pleadings are to be construed liberally with a view to substantial justice. Cal. Code Civ. Proc. § 452; *Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:197 (2010). The allegations of the complaint are presumed true; they are read as a whole and in context. *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.

Discussion

Allegations that Defendants Brenda Monroy and Jennifer H. Lopez’s Actions Constitute Assault and Battery

Defendants seek to strike the allegations that Defendants Brenda Monroy and Jennifer Lopez assaulted and battered Plaintiff from the

SAC on the ground that *Defendants* think Plaintiff left them in there by mistake. Plaintiff disagrees.

Accordingly, this portion of the motion to strike is denied.

As discussed, that does not mean Plaintiff has sufficiently alleged a cause of action for assault or battery against Brenda Monroy or Jennifer Lopez

Allegations that Defendants Tatiana Monroy, Brenda Monroy, and Jennifer H. Lopez Were in the Course and Scope of Their Employment With Lawrence G. Lyonss, PhD at the Time of the Assault, And Alleging Responsibility for Their Acts Under the Doctrine of Respondeat Superior

Defendants' argument that Plaintiff has not sufficiently alleged respondeat superior liability is premised on facts outside the complaint.

This portion of the motion to strike is denied.

Allegations that Defendants Tatiana Monroy, Brenda Monroy, and Jennifer H. Lopez Actions Were Oppressive, Malicious, Despicable, and Done with Reckless Disregard

And

Prayer for Punitive or Exemplary Damages

Plaintiff alleges that the conduct of "Tatiana Monroy, Brendan Monroy, Jennifer Lopez and each of them, was malicious, oppressive, and despicable, and was done in conscious disregard of Plaintiff's rights" [FAC, ¶ 59.] Plaintiff seeks punitive damages against each of them. [*Id.* and prayer item 2.] Defendants seek to strike this allegation and prayer.

Civil Code section 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. "Malice" means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others; "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Civ. Code § 3294(c)(1), (2).

At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. *See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).

A finding of assault and battery may support punitive damage as showing malice. *McAfee v. Ricker* (1961) 195 Cal.App.2d 630 (finding evidence sustained findings as to exemplary damages for assault and battery).

Further, Plaintiff’s allegations as to Tatiana Monroy’s conduct raise a possible inference of malice. Accordingly, the motion to strike the punitive damage allegation and prayer as to Tatiana Monroy is denied. Again, though, no conduct by Brenda or Lopez is alleged, so the motion to strike is granted as to them.

Allegations that Defendants Brenda Monroy and Jennifer H. Lopez Interfered With or Assisted in Interfering With or Attempted to Interfere with Plaintiff’s Constitutional Rights by Committing, Threatening, Intimidating and/or Coercing

Again Defendants move to strike the allegations that Brenda and Lopez interfered with Plaintiff’s constitutional rights, on the assertion they were included by mistake. Again, that would be up to Plaintiff.

But this portion of the motion to strike is moot because the court sustained the demurrer to the cause of action for violation of Civil Code section 52.1.

Prayer for Reasonable Attorney’s Fees and Treble Damages

Defendants moves to strike Plaintiff’s prayers for attorneys’ fees and treble damages. These are premised on Plaintiff’s claim for violation of Civil Code section 52.1.

As discussed above, Plaintiff has failed sufficiently to allege a cause of action for violation of Section 52.1. Accordingly, the motion to strike Plaintiff’s prayers for attorneys’ fees and treble damages is granted.

Case Management Conference
Order to Show Cause re: Dismissal

8	Hart vs. Providence Mission Hospital - Laguna Beach 2024-01451053	Motion for Summary Judgment and/or Adjudication Continued to 08/17/2026
9	Hernandez vs. Winn Incorporated 2025-01456223	Motion to Compel Arbitration Off Calendar. Stipulation for Arbitration filed. ADR Review Hearing set 12/07/2026.
10	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	Motion to Compel Physical/Mental Examination Defendant Peter Rendon’s motion to compel an independent mental examination of Plaintiff Felixitas Lomeli De Facio is denied. The motion is not timely. Code Civ. Proc., § 2024.030 provides that the discovery cut-off for expert witnesses is 15 days before trial and the motion cutoff is 10 days before trial. A “continuance or postponement of the trial date does not operate to reopen discovery proceedings.” (Code Civ. Proc., § 2024.020(b).) When trial was continued from 5/4/26 to 8/31/26, the Court did not also continue the discovery deadlines to track with the new trial date. (ROA 842.) The parties both acknowledge in the briefing that this motion is being brought past the deadline. Defendant requests relief from the foregoing statutes pursuant to Code Civ. Proc., § 2024.050. The purposes of California's discovery statutes are, among other things “to assist the parties and the trier of fact in ascertaining the truth; to encourage settlement by educating the parties as to the strengths of their claims and defenses; to expedite and facilitate preparation and trial; to prevent delay; and to safeguard against surprise.” (<i>Beverly Hospital v. Superior Court</i> (1993) 19 Cal.App.4th 1289, 1294–95.) Courts are to “construe the statutes time limitations in a way which is consistent with” these purposes. (<i>Id.</i> at 1295.) There is a time limit imposed on discovery “to expedite and facilitate trial preparation and to prevent delay.” (<i>Id.</i>) Absent a cutoff date (such as 30 days before trial), “the parties could tie up each other and

the trial court in discovery and discovery disputes right up to the eve of trial or beyond....to be effective the cutoff date must be firm or some litigants will manipulate the proceedings to avoid the cut-off date.” (*Id.*)

Defendant Rendon argues that while its co-defendant, Sodexo, conducted a mental examination of Plaintiff with its expert, Rendon has not yet been able to do so prior to the discovery cut-off through no fault of its own, and is entitled to as a matter of right.

Rendon’s arguments are unavailing.

First, the record reflects that previously Plaintiff underwent a mental examination by an expert (Dr. Lavid) designated by *both Rendon and Sodexo*. (Etemadi Decl., ¶¶ 2, 3, Exs. A, B.)

Thereafter, Rendon retained separate counsel from Sodexo. Current counsel for Rendon states that she attended the deposition of Plaintiff’s expert, Bennet Williamson, Ph.D. on 12/16/25, who had criticisms of Dr. Lavid’s methodology, causing counsel to determine that Rendon should retain its own expert. (Rice Decl., ¶¶ 7, 11.)

The facts as presented to the Court do not demonstrate diligence.

Plaintiff initially served its First Amended Complaint in December of 2020, asserting causes of action for harassment and retaliation in violation of the FEHA, as well as intentional infliction of emotional distress and alleges that she “has suffered and will continue to suffer physical injuries, pain and suffering, and extreme and severe mental anguish and emotional distress....” (FAC, ¶ 70.) These allegations should have put Defendant on notice that a mental examination would likely be warranted.

Despite this and discovery that was conducted over the past several years regarding these allegations, Rendon filed its initial expert designation on 12/15/25, stating that it was not retaining any expert witnesses. (Rice Decl., Ex. F.) The Court presumes that Rendon planned to rely on Sodexo’s experts’ testimony at trial. However, Defendant does not offer any information as to when exactly did Rendon decided differently and why at that point did Rendon not seek out its own experts.

Waiting to serve notice of the instant IME until 3/10/26 shows a lack of diligence in defending against Plaintiff’s claims. (Rice Decl., ¶ 2.)

		With respect to the merits of Defendant’s request for leave to conduct its IME, the Court finds good cause to be lacking. As noted above, Rendon already conducted a mental examination of Plaintiff through its then-expert at the time, Dr. Lavid. Therefore, Rendon’s statement that it “has not yet exercised his right to an IME,” is not accurate. (Motion at pg. 9.) Furthermore, Rendon’s suggestion that it “can take an IME under Code of Civil Procedure section 2032.220(a) as a matter of right,” is also wrong. Only in a personal injury case can a defendant compel a plaintiff to submit to a <i>physical exam</i> (not a mental exam) without a court order. (Code Civ. Proc., § 2031.220.) Leave of Court is required for a mental examination, and good cause must be shown. (Code Civ. Proc., §§ 2031.310(a); 2032.320(a).) Plaintiff argues that there is good cause because Plaintiff’s expert Dr. Williamson criticized Dr. Lavin’s examination. (Rice Decl., ¶¶ 7, 9, Ex. G, pp. 34:10-38:20; 39:12-40:1.) The disagreement between experts on proper methodology does not constitute good cause. Accordingly, Defendant Rendon’s motion is denied. Plaintiff shall give notice.
11	Nguyen vs. Lim 2023-01335514	Motion to Be Relieved as Counsel of Record Off Calendar as moot. Substitution of Attorney filed.
12	Nour vs. Al-Khanji 2024-01373153	Motions to Be Relieved as Counsel of Record On the motions of the Law Offices of Mark Martinez, by Mark Martinez, counsel of record for defendants (1) Mark El Khanji and (2) Zeina Sous for orders relieving it as counsel for each of Defendants, there are no proofs of service on plaintiff Hansaa Noor in the file. If counsel files a proof of proper service prior to the hearing, the motions will be granted. Otherwise, they will be continued for service of the motion papers on Plaintiff – along with service of notice of continuance on Plaintiff and Defendants. If the required proof of service is filed, the court will interlineate the new trial date into the proposed orders and will signed the amended orders.

		Upon the signing of the orders, counsel shall serve the signed orders on both Defendants and all parties that have appeared. Counsel will be relieved as counsel of record for each of Defendants effective upon the filing of the proofs of service of the signed orders upon both of them and all other parties.
13	Polsky vs. MCAP Holdings, LLC 2022-01287078	Motion to Compel Further Responses to Form Interrogatories / Motion to Compel Production The motion by Plaintiff Andrew Polsky, derivatively on behalf of MCAP Holdings, LLC for an order compelling Defendant MCAP Holdings, LLC (“MCAP”) to provide substantive answers to form interrogatories, set one, and imposing sanctions, jointly and severally against MCAP and its counsel of record, Steve Buchwalter, and the motion by Plaintiff Andrew Polsky for an order compelling MCAP to provide substantive answers to request for production, set one, compelling MCAP to produce documents responsive to the requests, and imposing sanctions, jointly and severally against MCAP and its counsel of record, Steve Buchwalter, are moot. There is no dispute MCAP served supplemental responses to the form interrogatories on June 7, 2026 and to the requests for production on May 22, 2026. There is also no dispute MCAP also produced documents on May 22, 2026. Accordingly, the motions are moot. The Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).) The Court “shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Ct., Rule 3.1348(a).)

		MCAP did not show MCAP acted with substantial justification or that the imposition of sanctions would be unjust as to the motion to compel further responses to form interrogatories. MCAP showed MCAP needed time to review documents and provide substantive further responses to the requests for production. No sanctions are warranted at this time for the motion to compel further responses to requests for production. MCAP shall pay monetary sanctions in the amount of \$2,925 to Rutan & Tucker, LLP within 30 days. Whether MCAP shall be compelled to produce the documents listed in MCAP's privilege log should be determined in a properly noticed motion after the parties meet and confer. Plaintiff shall give notice.
14	Roche vs. Frey	Motion for Bifurcation
	2024-01373203	Continued to 11/16/2026